PRINTER'S NO. 3904

THE GENERAL ASSEMBLY OF PENNSYLVANIA

HOUSE BILL

No. 2800 Session of 2026

INTRODUCED BY SHUSTERMAN, SCOTT, WAXMAN, KAZEEM, SANCHEZ, PIELLI, D. WILLIAMS, GUENST, STEELE, CEPEDA-FREYTIZ, MAYES, PROBST, T. DAVIS, KHAN AND PASHINSKI, SEPTEMBER 22, 2026

REFERRED TO COMMITTEE ON COMMUNICATIONS AND TECHNOLOGY, SEPTEMBER 23, 2026

AN ACT

Providing for artificial intelligence risk prevention; establishing standards for frontier developers in addressing critical safety incidents and catastrophic risks; imposing duties on the Pennsylvania Emergency Management Agency and the Attorney General; and imposing penalties.

TABLE OF CONTENTS

Chapter 1. Preliminary Provisions

Section 101. Short title.

Section 102. Definitions.

Chapter 3. Business Operations

Section 301. Registration form.

Section 302. Large frontier developer disclosure.

Section 303. Fees.

Section 304. List of filings.

Chapter 5. Frontier Models

Section 501. Frontier AI frameworks.

Section 502. Transparency reports.

Chapter 7. Audits

Section 701. Audit required.
Section 702. Standards.
Section 703. Financial interest.
Section 704. Compensation.
Section 705. Access to information.
Section 706. Audit reports.
Section 707. Notice.
Section 708. Access.
Section 709. Redactions.
Chapter 9. Critical Safety Incidents
Section 901. Reporting mechanism for critical safety incidents.
Section 902. Reporting critical safety incidents.
Section 903. Review.
Section 904. Transmittal of reports.
Section 905. Restricting access to information.
Chapter 11. Catastrophic Risks
Section 1101. Reporting mechanism for catastrophic risks.
Section 1102. Transmittal of assessment.
Section 1103. Materially false or misleading statements.
Chapter 13. Enforcement and Penalties
Section 1301. Enforcement generally.
Section 1302. Whistleblower protections.
Section 1303. Violations.
Section 1304. Penalties.
Chapter 15. Miscellaneous Provisions
Section 1501. Confidentiality.
Section 1502. Agency reports.
Section 1503. Construction.
Section 1504. Rules and regulations.
Section 1505. Effective date.

The General Assembly of the Commonwealth of Pennsylvania hereby enacts as follows:

CHAPTER 1

PRELIMINARY PROVISIONS

Section 101. Short title.

This act shall be known and may be cited as the Artificial Intelligence Risk Prevention Act.

Section 102. Definitions.

The following words and phrases when used in this act shall have the meanings given to them in this section unless the context clearly indicates otherwise:

"Affiliate." A person controlling, controlled by or under common control with a specified person, directly or indirectly, through one or more intermediaries.

"Agency." The Pennsylvania Emergency Management Agency.

"Artificial intelligence" or "AI." As follows:

(1) An automated system that produces text, audio, video, images, interactive responses or any other interaction on a digital platform that represents or simulates a user.

(2) The term includes generative artificial intelligence.

"Audit." An audit required under Chapter 7.

"Catastrophic risk." As follows:

(1) A foreseeable and material risk that a frontier developer's development, storage, use or deployment of a frontier model will materially contribute to the death of, or serious injury to, more than 50 people or more than $1,000,000,000 in damage to, or loss of, property arising from a single incident involving a frontier model doing any of the following:

(i) Providing expert-level assistance in the creation or release of a chemical, biological, radiological or nuclear weapon.

(ii) Engaging in conduct without meaningful human oversight, intervention or supervision that:

(A) is a cyberattack; or

(B) if the conduct had been committed by a human, would constitute the crime of murder, assault, extortion or theft, including theft by false pretense.

(iii) Evading the control of its frontier developer or user.

(2) The term does not include a foreseeable and material risk from any of the following:

(i) Information that a frontier model outputs if the information is otherwise publicly accessible in a substantially similar form from a source other than a foundation model.

(ii) Lawful activity of the Federal Government.

(iii) Harm caused by a frontier model in combination with other software if the frontier model did not materially contribute to the harm.

(3) For purposes of this definition, the loss of equity shall not be considered as part of the damage to or loss of property.

"Covered employee." An employee responsible for assessing, managing or addressing the risk of a critical safety incident.

"Critical safety incident." Any of the following:

(1) Unauthorized access to, modification of or exfiltration of the model weights of a frontier model that

results in death or bodily injury.

(2) Harm resulting from the materialization of a catastrophic risk.

(3) Loss of control of a frontier model causing death or bodily injury.

(4) The use by a frontier model of deceptive techniques against a frontier developer to subvert the controls or monitoring of the frontier developer, outside of the context of an evaluation designed to elicit this behavior, in a manner that demonstrates materially increased catastrophic risk.

"Deploy." As follows:

(1) To make a frontier model available to a third party for use, modification, copying or combination with other software.

(2) The term does not include to make a frontier model available to a third party for the primary purpose of researching, developing or evaluating the frontier model.

"Foundation model." An artificial intelligence system that is all of the following:

(1) Trained on a broad data set.

(2) Designed for generality of output.

(3) Adaptable to a wide range of distinctive tasks.

"Frontier AI framework." Documented technical and organizational protocols to manage, assess and mitigate a catastrophic risk.

"Frontier developer." A person who trains, or initiates the training of, a frontier model using computing power that meets the technical specifications specified in the definition of "frontier model."

"Frontier model." As follows:

(1) A foundation model that was trained using a computing power greater than 1,026 integer or floating-point operations.

(2) The quantity of computing power described in paragraph (1) includes computing for the original training run and for any subsequent fine-tuning, reinforcement learning or other material modifications that the developer applies to the foundation model.

"Generative artificial intelligence." The class of models that emulates the structure and characteristics of input data in order to generate derived synthetic content.

"Large frontier developer." A frontier developer that, together with its affiliates, collectively had annual gross revenues in excess of $500,000,000 in the preceding calendar year.

"Model weight." A numerical parameter in a frontier model that is adjusted through training and that helps determine how inputs are transformed into outputs.

"Property." A tangible or intangible asset.

"Synthetic content." As follows:

(1) Information that has been significantly modified or generated by algorithms, including by artificial intelligence.

(2) The term includes images, videos, audio clips and text.

CHAPTER 3

BUSINESS OPERATIONS

Section 301. Registration form.

(a) Development.--The agency, in consultation with the

Attorney General, shall develop a registration form to be used by a person who wishes to operate as a frontier developer in this Commonwealth.

(b) Posting.--The form under subsection (a) shall be posted on the publicly accessible Internet website of the agency.

(c) Filing.--The agency shall prescribe the form and manner to submit a completed registration form to the agency.

Section 302. Large frontier developer disclosure.

(a) Disclosure required.--Beginning January 1, 2027, a large frontier developer may not develop, deploy or operate a frontier model, in whole or in part, in this Commonwealth, without having first:

(1) Filed a registration form in accordance with section 301.

(2) Filed a current disclosure statement in accordance with this section.

(3) Paid the required fee in accordance with section 303.

(b) Contents.--The disclosure statement under this section must contain:

(1) The name of the large frontier developer and all names under which the large frontier developer conducts business.

(2) The address of the principal place of business and the address of each office that the large frontier developer maintains in this Commonwealth.

(3) If the large frontier developer or the parent entity of the large frontier developer is a privately held or closely held company:

(i) A list of all persons that beneficially own a 5%

or greater interest in the large frontier developer at the time that the disclosure statement is filed.

(ii) A list of all persons who formerly beneficially owned a 5% or greater interest in the large frontier developer, including each predecessor of the large frontier developer, in the preceding five years.

(4) If the large frontier developer of the parent entity of the large frontier developer is a publicly traded company, a list of all persons that beneficially own a 50% or greater interest in the large frontier developer at the time that the disclosure statement is filed.

(5) The name and contact information of a point of contact, secondary contact and tertiary contact for the large frontier developer, who shall be responsible for receiving inquiries relating to this act from the agency or other governmental entities.

(6) Any other information deemed necessary by the agency.

(c) Filing.--

(1) The agency shall prescribe the form and manner to file the disclosure statement under this section.

(2) A disclosure statement must be filed on an annual basis and must also be filed at the time that:

(i) ownership of the frontier model is transferred; or

(ii) there is a material change to the information reported in the previously filed disclosure statement.

Section 303. Fees.

(a) Authorization.--The agency shall charge and collect fees from large frontier developers for the expenses of administering

and enforcing this act.

(b) Amount.--The agency shall prescribe by regulation the annual fee for each large frontier developer, which shall be collected at the time that the annual disclosure statement is filed.

(c) Nonrefundability.--Except as otherwise provided in this act, fees under this section are nonrefundable.

Section 304. List of filings.

(a) Maintenance.--The agency shall maintain and update a list of large frontier developers that have filed disclosure statements in accordance with section 302.

(b) Posting.--

(1) Subject to paragraph (2), the agency shall post the most current list described in subsection (a) on the publicly accessible Internet website of the agency.

(2) The list posted under paragraph (1) shall not include the information specified under section 302(b)(5).

CHAPTER 5

FRONTIER MODELS

Section 501. Frontier AI frameworks.

(a) Development.--Upon the effective date of this subsection, each large frontier developer shall begin to develop a frontier AI framework to govern how the large frontier developer will:

(1) Incorporate national standards, international standards and industry-consensus best practices into the frontier AI framework.

(2) Establish thresholds to assess whether a frontier model has capabilities that could pose a catastrophic risk, which may include multiple-tiered thresholds.

(3) Apply a mitigation to address the potential for catastrophic risks based on the results of an assessment undertaken in accordance with paragraph (2).

(4) Review an assessment and the adequacy of a mitigation as part of the decision to deploy or extensively and internally use a frontier model.

(5) Use a third party to assess the potential for a catastrophic risk and the effectiveness of a mitigation of a catastrophic risk.

(6) Revisit and update the frontier AI framework, including any criteria that trigger updates and how the large frontier developer determines when its frontier models are substantially modified enough to require disclosures in accordance with section 302.

(7) Use cybersecurity practices to secure unreleased model weights from unauthorized modification or transfer by internal or external parties.

(8) Identify and respond to critical safety incidents.

(9) Institute internal governance practices to ensure implementation of the processes enumerated under this subsection.

(10) Assess and manage a catastrophic risk resulting from the internal use of the frontier models, including a risk resulting from a frontier model circumventing an oversight mechanism.

(b) Implementation.--Beginning January 1, 2028, each large frontier developer shall implement the frontier AI framework developed under subsection (a).

(c) Notice.--Upon implementation of the frontier AI framework developed under subsection (a), the large frontier

developer shall clearly and conspicuously publish the frontier AI framework on its publicly accessible Internet website.

(d) Compliance.--Each large frontier developer shall comply with the frontier AI framework that the large frontier developer implemented in accordance with this section.

(e) Update.--

(1) At least once each year, a large frontier developer shall review and, as appropriate, update its frontier AI framework.

(2) If a large frontier developer makes a material modification to its frontier AI framework, the large frontier developer shall, within 30 days of the modification, clearly and conspicuously publish on its publicly accessible Internet website the modified frontier AI framework and a justification for the modification.

Section 502. Transparency reports.

(a) Report requirements for all frontier developers.--Subject to subsection (b), before, or concurrently with, deploying a new frontier model or a substantially modified version of an existing frontier model, a frontier developer shall clearly and conspicuously publish on its publicly accessible Internet website a transparency report containing all of the following:

(1) The website of the frontier developer.

(2) A mechanism that enables an individual to communicate with the frontier developer.

(3) The release date of the frontier model.

(4) The language supported by the frontier model.

(5) The modalities of output supported by the frontier model.

(6) The intended uses of the frontier model.

(7) Any generally applicable restrictions or conditions on uses of the frontier model.

(b) Additional report requirements for large frontier developers.--In addition to the required contents enumerated under subsection (a), the transparency report of a large frontier developer shall include summaries of all of the following:

(1) Each assessment of catastrophic risk from the frontier model conducted pursuant to the large frontier developer's frontier AI framework.

(2) The results of each assessment under paragraph (1).

(3) The extent to which a third-party evaluator was involved in each assessment.

(4) Other steps taken to fulfill the requirements of the frontier AI framework with respect to the frontier model.

(c) Summaries.--Each summary required under subsection (b) shall be provided in a machine-readable format to facilitate verification of model claims.

(d) Compliance.--A frontier developer that publishes the information required under subsection (a) or (b) as part of a larger document, including a system card or model card, shall be deemed in compliance with this section.

(e) Best practices.--A frontier developer is encouraged, but not required, to make disclosures described in this section that are consistent with, or superior to, industry best practices.

CHAPTER 7

AUDITS

Section 701. Audit required.

Beginning on January 1, 2028, or 90 days after a developer

first qualifies as a large frontier developer, whichever is later, a large frontier developer shall annually retain a third party to perform an independent audit of compliance with the requirements of this act.

Section 702. Standards.

A third party:

(1) Shall conduct an audit consistent with generally accepted auditing standards and best practices.

(2) Must possess demonstrated competence to perform an audit, including experience employing or contracting with individuals who possess technical expertise in the safety of frontier models.

Section 703. Financial interest.

A large frontier developer may not retain a third party to perform an audit if the large frontier developer has a financial interest in the third party or the third party has a financial interest in the large frontier developer.

Section 704. Compensation.

A large frontier developer may compensate a third party for services associated with performing an audit but may not condition payment, or the amount of payment, for services on the results of the third party's audit.

Section 705. Access to information.

(a) General rule.--Except as provided in subsection (b), a third party shall be granted access to all materials reasonably necessary to comply with the third party's obligations to perform an audit, including all unredacted versions of materials published in accordance with this act.

(b) Exception.--

(1) A large frontier developer may impose security

protocols on a third party that performs an audit, in order to:

(i) protect the trade secrets, confidential business information or cybersecurity of the frontier developer;

(ii) protect public safety or the national security of the United States; or

(iii) comply with Federal or State law.

(2) The security protocols under paragraph (1) include:

(i) Restrictions on note taking, copying, retaining or removing materials.

(ii) Requirements for on-premise review.

(iii) Confidentiality requirements.

Section 706. Audit reports.

(a) Preparation.--A third party shall prepare a report on the third party's audit, which includes all of the following:

(1) A description of whether the large frontier developer has substantially complied with the requirements of this act.

(2) If a material deviation from the requirements of this section has been made:

(i) A description of material deviation.

(ii) An explanation of and rationale for the material deviation.

(iii) Any recommendation for how the large frontier developer can improve its policies and processes for ensuring compliance with the requirements of this section.

(3) A detailed assessment of the large frontier developer's internal controls, including the designation and empowerment of senior personnel responsible for the

implementation of the internal controls by the large frontier developer, its employees and its contractors.

(4) A list of the personnel involved in the audit.

(5) The third party's procedures for managing conflicts of interest, including any conflicts of interest of any personnel involved in the audit.

(6) The methodology of the audit and the nature of the information reviewed by the third party to conduct the audit.

(7) The signature of the lead auditor certifying the results of the audit.

(b) Retention.--A large frontier developer shall retain an unredacted copy of each audit report under this chapter for as long as a frontier model is deployed plus five years.

Section 707. Notice.

No later than 30 days after receiving an audit report from the third party that performed the audit, the large frontier developer shall:

(1) Clearly and conspicuously publish on its publicly accessible Internet website a high-level summary of the findings contained in the audit report and a copy of the audit report with appropriate redactions.

(2) Transmit a copy of the redacted audit report to the agency and the Attorney General.

Section 708. Access.

Upon request, a large frontier developer shall grant the agency and the Attorney General access to an audit report of the large frontier developer, with redactions as permitted under section 709.

Section 709. Redactions.

(a) Purposes.--When a frontier developer publishes a

document to comply with this chapter, the frontier developer may make redactions to the document that are necessary for the purposes enumerated under section 705(b).

(b) If a frontier developer redacts information in a document in accordance with subsection (a), the frontier developer shall:

(1) Describe the character and justification of the redaction in any published version of the document to the extent permitted by the concerns that justify redaction.

(2) Retain the unredacted information for at least five years.

CHAPTER 9

CRITICAL SAFETY INCIDENTS

Section 901. Reporting mechanism for critical safety incidents.

(a) Establishment.--The agency, in consultation with the Attorney General, shall establish a mechanism to be used by a frontier developer or a member of the public to report a critical safety incident.

(b) Information.--The mechanism described in subsection (a) must include the ability to provide the following information:

(1) The date of the critical safety incident.

(2) The reasons that the incident qualifies as a critical safety incident.

(3) A short and plain statement describing the critical safety incident.

(4) Whether the critical safety incident was associated with internal use of a frontier model.

Section 902. Reporting critical safety incidents.

(a) Duty to report.--Subject to subsection (c), within 72 hours of the frontier developer learning facts sufficient to

establish a reasonable belief that a critical safety incident has occurred pertaining to a frontier model of the frontier developer, the frontier developer shall report the critical safety incident to the agency and the Attorney General.

(b) Disclosure of information.--As part of the reporting under subsection (a), a frontier developer shall disclose the information enumerated under section 901(b).

(c) Imminent risk of death or serious physical injury.--If a frontier developer discovers that a critical safety incident poses an imminent risk of death or serious physical injury, the frontier developer shall disclose the critical safety incident within 24 hours to an appropriate authority, including a law enforcement agency or public safety agency with jurisdiction, based on the nature of the critical safety incident and as required by law.

(d) Amended reports.--A frontier developer that discovers information about a critical safety incident after filing the initial report required under this section may file an amended report.

(e) Discretion to report.--A frontier developer is encouraged, but not required, to report critical safety incidents pertaining to foundation models that are not frontier models.

Section 903. Review.

The agency and the Attorney General:

(1) Shall review critical safety incident reports submitted by frontier developers.

(2) May review critical safety incident reports submitted by members of the public.

Section 904. Transmittal of reports.

(a) Authorization.--The agency or the Attorney General may transmit reports of critical safety incidents to any of the following:

(1) The Federal Government.

(2) The Governor.

(3) An appropriate State agency.

(4) The General Assembly.

(b) Considerations.--When transmitting a report in accordance with subsection (a), the agency and the Attorney General shall strongly consider the risks related to the following:

(1) Trade secrets, confidential business information or cybersecurity of the frontier developer.

(2) Public safety or the national security of the United States.

(3) Noncompliance with Federal or State law.

Section 905. Restricting access to information.

The agency and the Attorney General shall take all necessary precautions to protect information reported under this chapter or related to the internal use of a frontier model by:

(1) limiting access to only personnel with a specific need to know the information; and

(2) preventing unauthorized access to the information.

CHAPTER 11

CATASTROPHIC RISKS

Section 1101. Reporting mechanism for catastrophic risks.

The agency, in consultation with the Attorney General, shall establish a mechanism to be used by a large frontier developer to confidentially submit a summary of an assessment of the potential for a catastrophic risk resulting from internal use of

a frontier model of the large frontier developer.

Section 1102. Transmittal of assessment.

A large frontier developer shall transmit to the agency each summary of an assessment of catastrophic risk resulting from internal use of the large frontier developer's frontier models every three months or pursuant to another reasonable schedule specified by the large frontier developer and communicated in writing to the agency and the Attorney General with written updates, as appropriate and agreed upon by the agency.

Section 1103. Materially false or misleading statements.

(a) Catastrophic risk.--A frontier developer may not make a materially false or misleading statement about catastrophic risk from its frontier models or its management of catastrophic risk.

(b) Frontier AI framework.--A large frontier developer may not make a materially false or misleading statement about its implementation of, or compliance with, its frontier AI framework.

(c) Applicability.--This subsection does not apply to a statement that was made in good faith and was reasonable under the circumstances.

CHAPTER 13

ENFORCEMENT AND PENALTIES

Section 1301. Enforcement generally.

The agency, in consultation with the Attorney General, shall enforce this act.

Section 1302. Whistleblower protections.

(a) Disclosure of information.--If a covered employee of a frontier developer has reasonable cause to believe that the activities of the frontier developer pose a specific and substantial danger to the public health or safety resulting from

a catastrophic risk or that the frontier developer has violated this act, the covered employee may disclose the information to any of the following:

(1) The agency.

(2) The Attorney General.

(3) An appropriate Federal authority.

(4) A person with authority over the covered employee.

(5) Another covered employee who has authority to investigate and take steps to mitigate the circumstances that are the subject of the disclosed information.

(b) Internal process.--

(1) A large frontier developer shall provide:

(i) A reasonable internal process through which a covered employee may anonymously or otherwise disclose information to the large frontier developer if the covered employee has reasonable cause to believe that the activities of the large frontier developer pose a specific and substantial danger to the public health or safety resulting from a catastrophic risk or that the large frontier developer has violated this act.

(ii) A monthly update to the covered employee who made the disclosure under subparagraph (i), if known, regarding the status of the large frontier developer's investigation of the disclosure and the actions taken by the large frontier developer in response to the disclosure.

(2) Except as provided in paragraph (3), each disclosure and response under paragraph (1) shall be shared with officers and directors of the large frontier developer at least once on a quarterly basis.

(3) If a covered employee has alleged wrongdoing by an officer or director of the large frontier developer in a disclosure or response under paragraph (1), paragraph (2) shall not apply with respect to that officer or director.

(c) Prohibitions.--A frontier developer may not:

(1) Make, adopt, enforce or enter into a rule, regulation, policy or contract that prevents a covered employee from making a disclosure in accordance with subsection (a).

(2) Retaliate against a covered employee for making a disclosure in accordance with subsection (a).

(d) Notice of rights.--A frontier developer shall provide a clear notice to all covered employees of the frontier developer of their rights and responsibilities under this section by one of the following methods:

(1) Displaying the notice at all times in a conspicuous location or manner at the workplace of the frontier developer and ensuring that:

(i) Each new covered employee receives an equivalent notice.

(ii) Each covered employee who works remotely periodically receives an equivalent notice.

(2) At least once each year, providing the notice in writing to each covered employee and ensuring that each covered employee acknowledges receipt of the notice.

(e) Whistleblower Law.--This section does not impair or limit the applicability of the act of December 12, 1986 (P.L.1559, No.169), known as the Whistleblower Law, including the rights of employees who are not covered employees.

Section 1303. Violations.

(a) Compliance generally.--Subject to subsection (b), a person commits a violation of this act if the person:

(1) Develops, deploys or operates a frontier model in this Commonwealth without having met all of the requirements under this act.

(2) Submits materially false or misleading information in any disclosure, report or assessment under this act.

(3) Fails to otherwise comply with this act.

(b) Large frontier developers.--A large frontier developer commits a violation of this act if the large frontier developer:

(1) Fails to publish or transmit a compliant document required to be published or transmitted under this act.

(2) Fails to comply with its own frontier AI framework.

(3) Fails to have a third party perform an independent audit in accordance with Chapter 7.

(4) Fails to report a critical safety incident in accordance with Chapter 9.

(5) Makes a materially false or misleading statement under section 1103.

Section 1304. Penalties.

(a) Civil penalties, fees and costs.--In addition to any other penalty or liability that may be imposed under this act and other State law:

(1) A person that commits a violation described under section 1303(a) shall be subject to the following enforcement actions by the agency, after notice and hearing:

(i) The payment of a civil penalty not exceeding $1,000 for each day that the person is in violation of this act.

(ii) Fees and other costs incurred by the agency as

a result of the violation by the person.

(2) A large frontier developer that commits a violation described under section 1303(b) shall be subject to:

(i) A civil penalty in an amount dependent upon the severity of the violation that does not exceed:

(A) $1,000,000 per violation for the first violation.

(B) $3,000,000 per violation for a subsequent violation.

(ii) (Reserved).

(b) Injunctive relief.--In addition to the penalties under subsection (a), the agency may seek injunctive relief against the person violating this act in a court of competent jurisdiction.

(c) Civil action.--A civil penalty described under subsection (a) shall be recovered in a civil action brought exclusively by the Attorney General.

(d) Deposit of civil penalties.--Any civil penalties collected from the enforcement of this act shall be deposited into the General Fund.

(e) Private right of action precluded.--Nothing in this act shall be construed to establish a private right of action associated with violations of this act.

CHAPTER 15

MISCELLANEOUS PROVISIONS

Section 1501. Confidentiality.

The following records are exempt from access under the act of February 14, 2008 (P.L.6, No.3), known as the Right-to-Know Law:

(1) Any unredacted version of an audit report under Chapter 7 in the possession of the agency or the Attorney

General.

(2) Any materials, work papers, notes or derivative documents prepared by a third party in connection with an audit under Chapter 7, to the extent that the materials come into possession of the agency or the Attorney General.

(3) Reports of a critical safety incident under Chapter 9 submitted to the agency or the Attorney General.

(4) Reports of an assessment of catastrophic risk from internal use under Chapter 11.

(5) Any covered employee report made or required under this act.

Section 1502. Agency reports.

(a) Reports required.--Subject to subsection (b), by January 1, 2029, and by each January 1 thereafter, the agency, in consultation with the Attorney General, shall produce a report that includes the following:

(1) Anonymized and aggregated information about critical safety incidents that have been reviewed by the agency or the Attorney General since the preceding report.

(2) Information that the agency deems relevant to frontier model safety.

(3) Recommended updates to this act, if any.

(4) Any developments relevant to the purpose of this act.

(b) Nondisclosure of certain information.--The agency and the Attorney General may not include information in a report under subsection (a) that would:

(1) Compromise the trade secrets, confidential business information or cybersecurity of a frontier developer.

(2) Compromise public safety or the national security of

the United States.

(3) Be prohibited by Federal or State law.

(c) Transmittal.--The agency, in consultation with the Attorney General, shall transmit each report under subsection (a) to the Governor and the General Assembly.

Section 1503. Construction.

The duties, obligations, rights and remedies under this act are in addition to the duties, obligations, rights and remedies that are under other applicable State law and shall not be construed to:

(1) relieve a person from duties or obligations under other applicable State law; or

(2) limit any rights or remedies under other applicable State law.

Section 1504. Rules and regulations.

(a) Authorization.--

(1) Subject to paragraph (2), the agency may adopt or promulgate any rule or regulation that is necessary for the implementation, administration or enforcement of this act.

(2) The agency shall promulgate regulations necessary to implement, administer and enforce section 303, including the amount of the annual fee, which may be in the form of a pro rata assessment fee calculated to cover administrative and oversight costs instead of a fixed flat filing fee.

(b) Temporary regulations.--

(1) To facilitate the prompt implementation of this act and in accordance with this act, the agency shall, no later than six months after the effective date of this paragraph, issue temporary regulations as may be necessary and appropriate to implement, administer and enforce section 303

and any other provision of this act. Regulations adopted after this six-month period shall be promulgated as provided by statute.

(2) Upon the issuance of the temporary regulations, the agency shall transmit notice of the issuance of the temporary regulations to the Legislative Reference Bureau for publication in the next available issue of the Pennsylvania Bulletin.

(3) The agency shall post the temporary regulations on its publicly accessible Internet website.

(4) The temporary regulations shall expire no later than two years following publication of the temporary regulations in the Pennsylvania Bulletin.

(5) The temporary regulations shall be exempt from the following:

(i) Section 612 of the act of April 9, 1929 (P.L.177, No.175), known as The Administrative Code of 1929.

(ii) Sections 201, 202, 203, 204 and 205 of the act of July 31, 1968 (P.L.769, No.240), referred to as the Commonwealth Documents Law.

(iii) Sections 204(b) and 301(10) of the act of October 15, 1980 (P.L.950, No.164), known as the Commonwealth Attorneys Act.

(iv) The act of June 25, 1982 (P.L.633, No.181), known as the Regulatory Review Act.

(c) Permanent regulations.--Prior to the expiration of the temporary regulations, the agency shall propose for approval of permanent regulations as provided by statute.

Section 1505. Effective date.

This act shall take effect as follows:

(1) The following shall take effect immediately:

(i) Section 1504.

(ii) This section.

(2) The remainder of this act shall take effect one year after the publication of the notice under section 1504(b)(2).